

petitioner is directed to identify applicable case numbers of those guardianships or conservatorships. The order appointing the guardian ad litem is not the equivalent of creating a guardianship of the estate of the minor. If such an appointment is needed, a separate petition with the Probate Court will be required. In that case, petitioner must show that she has first filed, with the Probate Department, a petition to establish and fund the guardianship or conservatorship.

Further, petitioner's application appointing her as guardian ad litem in this case was denied, since an incomplete form was submitted. In the absence of a guardian of the estate or an appointed guardian ad litem, the right to compromise a minor's claim belongs to (1) either parent if the parents of the minor are not living separate and apart, or (2) the parent having the care, custody, or control of the minor if the parents of the minor are living separate and apart. (Prob. Code, § 3500.) It is not specified in the petition whether claimant's parents are living together or if petitioner is the primary caregiver for the claimant, so petitioner must either provide clarity on this matter or refile her application for guardian ad litem.

The proposed order approving compromise is incomplete. With the exception of identifying the petitioner as Emily Stone, the claimant to be Keilen¹ Oliver Stone and the defendant to be Robert Barth, the entirety of the form is blank.

While petitioner has signed the petition, she failed to state the date the petition was signed as required by Code of Civil Procedure section 2015.5.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on September 1, 2026 .
(Judge's initials) (Date)

¹ Although the spelling of the minor's name is "Keilan" on the caption section of the proposed order, it appears as "Keilen" on section 3 of the same.

(29)

Tentative Ruling

Re: **Glover v. Guerrero**
Superior Court Case No. 25CECG05407

Hearing Date: September 2, 2026 (Dept. 403)

Motion: Motion to Quash

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on September 1, 2026.
(Judge's initials) (Date)